

TENTATIVE RULINGS

FOR: June 05, 2026

If you do not see a tentative ruling for a scheduled matter, then attendance at the hearing is required.

Remote appearances via Zoom are optional. Please use Zoom at the links listed below.

If you have cases scheduled in both courtrooms at the same time, first log-in to the Zoom session for the department that has your quickest matter(s), and upon check-in, ask the clerk to email the clerk in the other department to advise that you will be late to the other Zoom session.

Dept. A Zoom

Join by Video

<https://www.zoomgov.com/j/1601453113?pwd=XpBIla8kBiCpGb0ukQyabkmCrgDdWM.1>

Effective immediately, Department A no longer permits remote Zoom appearance by telephone.

Dept. B Zoom

Join by Video

<https://www.zoomgov.com/j/1618700612?pwd=3bjaxoPtjuWe7B7JQWBQ8muwSuMiXC.1>

Effective immediately, Department B no longer permits remote Zoom appearance by telephone.

Dept. 6 Zoom

Join by Video (Preferred)

<https://www.zoomgov.com/j/1611412615?pwd=CVuzAdEmMJNjcWp0iWBmt1blRNHvyP.1>

Join by Phone: 833 568 8864 or 833 435 1820 **Meeting ID:** 161 141 2615 **Password:** 649401

Court Reporting Services – The Court does not provide official court reporters in proceedings for which such services are not legally mandated. Parties are responsible for either making the appropriate request in advance or arranging for their own private court reporter. Go to <http://napacountybar.org/court-reporting-services/> for information about local private court reporters. Attorneys or parties must confer with each other to avoid having more than one court reporter present for the same hearing.

**“Recording Court proceedings (whether by Zoom’s AI Meeting Summary functionality or by any other means) is PROHIBITED without express permission from a judicial officer.
(Cal. Rules of Court, Rule 1.150(c) & (d))**

PROBATE CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Estate of Tilafaiga Faamuli Taape, Jr.

24PR000214

PETITION FOR ORDER DIRECTING TRANSFER OF ASSETS TO ESTATE AND FOR DAMAGES: (1) VIOLATION OF UNIFORM VOIDABLE TRANSACTIONS ACT FOR ACTUAL FRAUDULENT TRANSFER; (2) FRAUDULENT TRANSFER; (3) IMPOSITION OF CONSTRUCTIVE TRUST

APPEARANCE REQUIRED.

FAMILY LAW CALENDAR – Hon. Cynthia P. Smith, Dept. A (Historic Courthouse) at 8:30 a.m.

Jesse Powell et al v. Christina Yee et al

25FL000217

PETITIONER’S MOTION TO SEAL PORTIONS OF PETITIONER’S OPPOSITION TO RESPONDENT’S MOTION TO DISQUALITY QUINN EMANUEL URQUHART & SULLIVAN, LLP [Filed 10/30/2025]

TENTATIVE RULING: The motion is DENIED AS MOOT.

This Motion was set for hearing on short notice, pursuant to Petitioner’s 6/3/26 *Ex Parte* Application. While the Declaration of Melinda H. Lewis in Support of Petitioner’s *Ex Parte* Application (“Lewis Decl.”) contends that the present Motion was unopposed before it was taken off calendar on 2/2/26, if that contention is inconsistent with Respondent’s understanding, and the Motion is, in fact, opposed and Respondent disagrees with this Tentative Ruling, her counsel should request oral argument pursuant to Local Rule 2.9 and appear at the hearing.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Petitioner Jesse Powell moves, pursuant to Rules of Court rules 2.550 and 2.551, for an order sealing portions of Petitioner’s 10/30/25 Opposition to Respondent’s 10/16/25 Petition to Disqualify and portions of the 10/30/25 Declarations of Jesse Powell and Alex Spiro in Support of Petitioner’s Opposition to Respondent’s 10/16/25 Petition to Disqualify (collectively, the “Subject Documents”).

Redacted copies of the three Subject Documents are in the Court file, and unredacted copies were *lodged* with the Court on October 30, 2025. (See Notice of Lodging of Documents

Conditionally Under Seal, filed 10/30/25.) Contrary to Petitioner’s 10/30/25 Motion, the unredacted copies were not “filed conditionally under seal” and are not, and were never, part of the Court file. (See Notice of Motion, 2:7.) By correspondence dated February 18, 2026, the Court notified the parties that it was returning the lodged, unredacted copies to counsel as the underlying motion to disqualify was withdrawn. Thus, the Court no longer has the unredacted copies in its possession.

Moreover, given that the underlying motion to which the Subject Documents were filed in opposition—i.e., Respondent’s 10/16/25 motion to disqualify—was withdrawn by Respondent’s counsel, there is no need for the Subject Documents in the court file (either redacted or unredacted). The motion to disqualify was withdrawn pursuant to the 2/2/26 Minute Order, which states that “[Respondent’s counsel] advised the Court that the Motions before the Court were being withdrawn at this time.” (2/2/26 Minute Order.) Respondent’s motions before the Court on 2/2/26 were the 10/16/25 motion to seal and 10/16/25 motion to disqualify. While Petitioner argues that his 10/30/25 motion to seal was improperly taken off calendar in response to the 2/2/26 Minute Order, Petitioner does not contend that the withdrawal of Respondent’s motions was inaccurate. (See Lewis Decl., ¶¶ 7-8.) Nor is there any other indication from Petitioner’s 6/3/26 *Ex Parte* Application or the Court file that the motion to disqualify is, or should be, on calendar. Rather, Petitioner merely argues that his motion to seal must be reset to avoid “a risk that the confidential attorney-client communications at issue in the Motion [] become part of the public record” (*Id.*, ¶ 14.)

Because unredacted copies of the Subject Documents are neither in the Court file nor in the Court’s possession via lodgment, and because there is no need for the unredacted copies to be in the Court file, the Motion to seal the unredacted version of those documents is moot. Thus, the Motion is DENIED.

To the extent either party contends that there is a need for the unredacted version of the Subject Documents to be in the Court file, the present Motion must be continued to allow Petitioner to lodge the unredacted version of the Subject Documents. Any party so contending should request oral argument pursuant to Local Rule 2.9 and appear at the hearing.

PROBATE CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

In the Matter of The Trudy Muffet Living Trust

26PR000035

AMENDED PETITION TO DETERMINE AND CONFIRM SUCCESSOR TRUSTEE

TENTATIVE RULING: The petition is GRANTED.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Julianne Wurm v. James Pitkow et al

24CV000921

PLAINTIFF’S MOTION TO WAIVE UNDERTAKING UNDER CODE OF CIVIL PROCEDURE SECTION 995.240 AND FOR STAY OF ENFORCEMENT OF MONEY JUDGMENT PENDING APPEAL; ALTERNATIVELY, FOR TEMPORARY STAY UNDER CODE OF CIVIL PROCEDURE SECTION 918 PENDING HEARING AND DETERMINATION (filed 5/8/26)

TENTATIVE RULING: The motion is DENIED.

Plaintiff Julianne Wurm moves, pursuant to Code of Civil Procedure sections 917.1 and 995.240,¹ for an order staying enforcement of the judgment pending appeal with waiver of an undertaking. Alternatively, Plaintiff moves, pursuant to section 918, for a temporary stay of the judgment pending hearing and determination of this motion.

The default rule is that, “[u]nless an undertaking is given, the perfecting of an appeal shall not stay enforcement of the judgment or order in the trial court if the judgment or order is ... [m]oney or the payment of money, whether consisting of a special fund or not, and whether payable by the appellant or another party to the action.” (§ 917.1, subd. (a)(1), emphasis added.)

However, “[t]he court may, in its discretion, waive a provision for a bond in an action or proceeding and make such orders as may be appropriate as if the bond were given, if the court determines that the principal is unable to give the bond because the principal is indigent and is unable to obtain sufficient sureties, whether personal or admitted surety insurers. In exercising its discretion the court shall take into consideration all factors it deems relevant, including but not limited to the character of the action or proceeding, the nature of the beneficiary, whether public or private, and the potential harm to the beneficiary if the provision for the bond is waived.” (§ 995.240.)

“A party seeking relief under this statute must make a motion to the trial court and has the burden of proving he was in fact indigent.” (*Burkes v. Robertson* (2018) 26 Cal.App.5th 334, 346, citing *Fuller v. State of California* (1969) 1 Cal.App.3d 664, 668, 670-71 [party seeking waiver must establish both financial need and effort to obtain a bond].)

Here, Plaintiff contends she is indigent under section 995.240 and cannot obtain sufficient sureties. Plaintiff’s showing as to each point is woefully insufficient. Plaintiff’s Declaration sets forth financials which do not establish or suggest indigency. (Pltf Decl., ¶¶ 9-14.) Her Declaration also fails to set forth facts establishing an inability to obtain sufficient sureties. On this point, the Declaration merely provides that Plaintiff was informed that the equity in one of her two homes might cover the judgment but would not cover the additional cost of bond. (*Id.*, ¶ 16.) That does not establish that Plaintiff, in consideration of the universe of assets detailed in her Declaration (or otherwise), cannot obtain a bond. Defendants argue in

¹ All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

Opposition that Plaintiff has not sufficiently shown she is indigent, and that evidence from trial—particularly the lease Plaintiff entered into three years ago in which she agreed to pay \$23,000 per month—suggests Plaintiff’s claim of indigency is not credible. Defendants further argue that Plaintiff’s showing of inability to obtain sufficient sureties fails under *Williams v. Freedomcard, Inc.* (2004) 123 Cal.App.4th 609, 615.

The Court finds that Plaintiff has failed to meet her burden under section 995.240. As such, Plaintiff’s request to stay the monetary penalties without an undertaking pursuant to sections 995.240 is DENIED.

Plaintiff alternatively requests an order temporarily staying enforcement of the judgment pursuant to section 918 “so that the status quo may be preserved while the Court considers the request for waiver of undertaking and stay pending appeal.” (Memorandum, 3:23-24; see also Notice of Motion, 2:12-14 [requesting temporary stay “pending hearing and determination of this motion”].) As an initial matter, such request for a stay until the time the present motion is heard appears moot now that the hearing on the present motion is here. Moreover, the Court has no authority to issue such a stay.

“[T]he trial court may stay the enforcement of any judgment or order.” (§ 918, subd. (a).) However, “[i]f the enforcement of the judgment or order would be stayed on appeal only by the giving of an undertaking, a trial court shall not have power, without the consent of the adverse party, to stay the enforcement thereof pursuant to this section for a period which extends for more than 10 days beyond the last date on which a notice of appeal could be filed.” (*Id.*, subd. (b).) This applies “whether or not an appeal will be taken from the judgment or order and whether or not a notice of appeal has been filed.” (*Id.*, subd. (c).)

Here, Defendants do not consent to the stay of enforcement as evidenced by their Opposition. Thus, the Court is only authorized, under section 918, to temporarily stay the judgment for a period up to 10 days beyond the last date when the notice of appeal could be filed. The last day for Plaintiff to file a notice of appeal was May 22, 2026, or 60 days from March 23, 2026 when the Court entered Judgment. With the additional 10 days, this would bring the temporary stay through June 1, 2026. As that date has passed, Plaintiff’s request for a temporary stay of the monetary judgment under section 918 is DENIED.

Defendants invite the Court to move, on its own motion, for sanctions pursuant to section 128.7, subdivision (c)(2). The request is DENIED without prejudice to Defendants’ right to move under section 128.7 subdivision (c)(1).

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Michael Bentley et al v. Mark Vedete et al

26CV000561

DEMURRER TO COMPLAINT

TENTATIVE RULING: The demurrer is SUSTAINED WITH LEAVE TO AMEND. Plaintiffs are granted 10 days’ leave from Notice of Entry of Order to amend. (See Rules of Court, rule 3.1320(g).) Defendants are directed to provide Notice of Entry of Order.

The moving party failed to include in the notice of this motion proper notice of the Court's tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

Defendants Tourbuilt LLC, dba Groove Golf, and Mark Vedete (collectively "Defendants") demur, pursuant to Code of Civil Procedure section 430.10, subdivisions (f) and (g),² to the Complaint filed by Plaintiffs Michael D. Bentley and Paradigm Performance Group Inc. (collectively, "Plaintiffs"). The grounds for the demurrer are that the breach of contract claim (1) is not pled with any particularity or specificity; (2) fails to allege whether the alleged contract is written, oral, or implied; (3) does not allege the parties to the alleged contract or the date of the alleged contract; (4) is devoid of allegations about how Defendants breached the alleged contract; and (5) fails to allege how Plaintiffs suffered a loss.

"To state a cause of action for breach of contract, [a plaintiff] must plead the contract, his performance of the contract or excuse for nonperformance, [defendant's] breach and the resulting damage. Further, the complaint must indicate on its face whether the contract is written, oral, or implied by conduct. If the action is based on an alleged breach of a written contract, the terms must be set out verbatim in the body of the complaint or a copy of the written instrument must be attached and incorporated by reference. (*Otworth v. Southern Pacific Transportation Co.* (1985) 166 Cal.App.3d 452, 458-59. Internal citations omitted.)

In Opposition, Plaintiffs argue, in conclusory fashion, that the Complaint sufficiently alleges the breach of contract cause of action, and submits a Declaration of Michael Bentley ("Bentley Decl.") containing facts relevant to the underlying dispute and attaching communications and records, including what the Court assumes is the subject contract. Plaintiffs do not reference or cite to their Complaint.

The Court's review of the Complaint confirms that it does not include any of the facts asserted through the Bentley Decl. in Opposition, and it does not attach a copy of the subject contract. The Court finds that the Complaint fails to state facts sufficient to allege a breach of contract cause of action. The Complaint, which is on Judicial Council Form PLD-C-001, marks the "breach of contract" box under section 8; however, no breach of contract cause of action attachment (Form PLD-C-001(1)) is included, nor are any facts in support of a breach of contract cause of action provided, other than: "Plaintiffs principal place of business is located in Napa County and contract was partially performed in Napa County." (Compl., § 8.) Additionally, the Complaint prays for damages of \$203,750.68. (Compl., § 10(a).)

Thus, the Demurrer is SUSTAINED WITH LEAVE TO AMEND.

² All subsequent statutory references are to the Code of Civil Procedure unless otherwise specified.

In Reply, Defendants argue that the Court should also sustain the demurrer because Defendant Paradigm Performance Group Inc. is a suspended corporation and is appearing in propria persona. These points were raised for the first time in Reply, and therefore, the Court's order sustaining the demurrer is not based on them. However, the Court notes, for Plaintiffs' benefit in amending their complaint, that Defendants have asserted accurate propositions of law. (See *Grell v. Laci Le Beau Corp.* (1999) 73 Cal.App.4th 1300, 1306 ["During the period that a corporation is suspended for failure to pay taxes, it may not prosecute or defend an action..."]; *CLD Constr., Inc. v. City of San Ramon* (2004) 120 Cal.App.4th 1141, 1145 ["[A] corporation, unlike a natural person, cannot represent itself before courts of record in propria persona, nor can it represent itself through a corporate officer, director or other employee who is not an attorney ... [i]t must be represented by licensed counsel in proceedings before courts of record."].)

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In The Matter of Allison Busse

26CV000841

PETITION FOR CHANGE OF NAME

APPEARANCE REQUIRED to discuss the following two items.

Where a Petition for change of name of a minor is brought by only one parent, the non-petitioning parent, if living, must be personally served with the Order to Show Cause for Change of Name (OSC) and given 30 days' notice of the hearing. (See Code of Civ. Proc. § 1277, subd. (a)(4).) Where notice to the minor's father cannot reasonably be accomplished, the Court may allow Petitioner to utilize another manner of service which is reasonably calculated to give actual notice to the father. (*Ibid.*) The court file contains no proof of service on the minor's father or proof (i.e., declaration) that such service cannot reasonably be accomplished. The Petition only indicates the non-petitioning parent's location are "unknown." Petitioner's appearance is required to explain her efforts to find and serve the non-petitioning parent.

Moreover, an Order to Show Cause (OSC) was entered in this matter on April 23, 2026. Petitioner is required to publish the OSC in the manner set forth in Code of Civil Procedure, section 1277. There is no proof of publication (POP) in the Court's file. If no POP is filed prior to the hearing date, the Court will be forced to continue the matter, and the length of the continuance depends upon the status of publication. Petitioner's appearance is required to report to the Court the status of publication.

GUARDIANSHIP CALENDAR – Judge Francisca P. Tisher (Ret.), Dept. 6 (Criminal Courts Bldg. – 1111 Third St.) at 2:00 p.m.

Guardianship of Jonathan Alejandro Torres Pimentel

26PR000074

- [1] PETITION FOR APPOINTMENT OF GUARDIAN
- [2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are GRANTED. The Court has read and considered all reports submitted pursuant to Probate Code section 1513.

The matter is set for a Guardianship Review Hearing and Event for June 04, 2027, at 2:00 p.m. in Dept. 6. The guardian is advised that she will receive a blank Status Report (GC-251 Form) in the mail in approximately 11 months that she will be required to complete and return to the Court. Timely filing of the form may result in the hearing being vacated.

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Guardianship of Byron Osmany Reyes Viveros

26PR000079

PETITION FOR APPOINTMENT OF GUARDIAN OF MINOR

TENTATIVE RULING: The Petition is GRANTED. The Court has read and considered all reports submitted pursuant to Probate Code section 1513.

The matter is set for a Guardianship Review Hearing and Event for June 04, 2027, at 2:00 p.m. in Dept. 6. The guardian is advised that he will receive a blank Status Report (GC-251 Form) in the mail in approximately 11 months that he will be required to complete and return to the Court. Timely filing of the form may result in the hearing being vacated.

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Guardianship of Carlos Daniel Garcia Guia

26PR000089

- [1] PETITION FOR APPOINTMENT OF GUARDIAN
- [2] PETITION FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Petitions are GRANTED. The Court has read and considered all reports submitted pursuant to Probate Code section 1513.

The matter is set for a Guardianship Review Hearing and Event for June 04, 2027, at 2:00 p.m. in Dept. 6. The guardian is advised that she will receive a blank Status Report (GC-251 Form) in the mail in approximately 11 months that she will be required to complete and return to the Court. Timely filing of the form may result in the hearing being vacated.

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Keylor Jose De Leon Lopez v. Wendy Siomara Lopez Guzman

26FL000256

- [1] PETITION TO DETERMINE PARENTAL RELATIONSHIP
- [2] REQUEST FOR SPECIAL IMMIGRANT JUVENILE FINDINGS

TENTATIVE RULING: Both Requests are GRANTED. Petitioner is directed to file Proposed Orders for each immediately forthwith.